

The complaint

Mr and Mrs J are unhappy that Lloyds Bank General Insurance Limited (Lloyds) declined their claim for storm damage under their buildings insurance. The policy was in joint names but because Mrs J dealt with the claim, and for ease, I'll refer only to her throughout my decision.

What happened

Rain leaked into Mrs J's home during a storm, so she claimed under her policy for storm damage. Lloyds appointed a surveyor who initially accepted the claim for both internal and external damage. A short time later, after looking at historical images of the house, the surveyor declined the claim for the roof damage.

Mrs J complained to Lloyds, but it said that wear and tear was the main reason the rain leaked through the roof, which wasn't covered under the policy. However, it confirmed that the internal damage was covered under the policy.

Lloyds accepted that its surveyor made a mistake by discussing the claim outcome with Mrs J and offered £125 by way of apology. Mrs J didn't think that went far enough and she wanted Lloyds to pay the full claim.

Our investigator didn't uphold the complaint. He thought that Lloyds declined the roof claim in line with the policy and its offer of compensation adequately addressed the service shortfall.

Mrs J didn't agree and asked for further consideration, so the complaint was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

While I realise Mrs J will be disappointed, I've decided not to uphold her complaint. I'll explain why.

The overriding issue is that Lloyds declined Mrs J's claim for storm damage to her roof. My remit is to look at whether Lloyds declined her claim fairly, and in line with the policy.

When looking at storm claims, I consider three questions:

1. Was there a storm?
2. Was the damage typical of that caused by a storm?
3. Was the damage caused wholly or mainly by a storm?

There's no dispute that there was a storm, or that roof damage can be typical of that caused by a storm. So, I'll move onto consideration of the final question.

3. Was the damage caused wholly or mainly by a storm?

Mrs J said Lloyds' surveyor told her the damage was caused by a storm and her claim would be covered. There's no documented evidence of that either way, so I'll accept what Mrs J said as an accurate account of events.

A couple of hours later, Lloyds' surveyor told Mrs J an online street view showed that damage to her roof was present a few years earlier. The surveyor concluded the damage was caused mainly by wear and tear and declined her claim for the external damage.

Looking at the policy, Mrs J had cover for storm damage. However, under the *General exclusions* heading, it says:

This policy does not cover... Any loss or damage caused by:

- *A gradually operating cause. This is something that happens gradually over a period of time...*
- *Wear and tear;*
- *Wear and tear is damage that naturally and inevitably occurs as a result of normal wear or ageing*

Examples of wear and tear include:

- *Weathering to a roof...*

I can understand that Mrs J is unhappy the surveyor changed their mind after viewing online images of her roof, and she doubts that the view would've offered a clear image of her roof anyway.

Looking at the storm definition, the policy confirms:

We will take into consideration the condition of your home. A storm can highlight damage rather than cause it and damage that happens gradually through wear and tear or due to the lack of maintenance is not covered.

I'm satisfied that it was reasonable for the surveyor to use any means available to identify the condition of Mrs J's home prior to the damage. So, I can't say that it was wrong of the surveyor to change their mind after viewing online information. The street view is no longer available so I can't verify what the surveyor would've seen. The current image offers a view of the roof.

Taking into consideration the overall surveyor's report, which includes photos, I can't say that the conclusion reached was unreasonable. There's evidence of wear and tear, so it's reasonable to say that contributed to the damage. That is, the storm simply highlighted or exacerbated the existing damage.

Going back to Mrs J's complaint about the surveyor's use of online street views, she explains that the roof canopy was replaced after the image was taken. Unfortunately, there's no evidence to support what she says. However, if Mrs J can provide evidence that she replaced her roof after the image was taken but before the storm date, then it would be reasonable for Lloyds to consider that evidence. That is a matter for Mrs J to pursue, and provide the evidence directly to Lloyds should she wish to.

In summary, I'm satisfied that Lloyds declined Mrs J's claim for roof damage fairly and in line with the policy exclusion for wear and tear. I won't be asking it to do any more.

Internal damage

Lloyds accepted Mrs J's claim for repairs to her internal decoration caused by rain leaking through her damaged roof during the storm. It agreed that was a one-off incident caused by

the storm. Lloyds offered to cash settle her claim, less her excess, but Mrs J doesn't think it's enough.

I'm satisfied that Lloyds accepted the claim in line with the policy and its offer to settle the claim was reasonable. While Mrs J doesn't think the offer was enough, I haven't seen any evidence to suggest otherwise. I note that Lloyds said it would consider any invoices for the repairs that Mrs J provides to determine whether the settlement should be more. I think that's fair and the matter, again, lies with Mrs J to evidence directly to Lloyds that a higher cash settlement is warranted. I won't be asking Lloyds to do any more here.

Customer service

Finally, I've thought about the overall circumstances of Mrs J's claim to see whether Lloyds' offer of £125 for the shortfalls she experienced is fair.

Lloyds accepted it made mistakes. Specifically, it said the surveyor shouldn't have been handling the decisions to decline or accept Mrs J's claim, which has evidently caused her some dissatisfaction. That said, the roof damage claim was declined within a few hours of saying it would be covered, so Mrs J's expectations would've only been raised for a short time. Having considered this, the compensation Lloyds offered is in line with what I would've required under the circumstances, so I won't be asking it to increase its offer.

Conclusion

I'm sorry to hear of Mrs J's personal circumstances. I can understand how this matter must've caused her distress. But I can't hold Lloyds responsible for the unfortunate timing of events and I must look only at any additional distress or inconvenience Lloyds caused. Overall, I'm satisfied that Lloyds made a fair offer of compensation by way of apology for its mistake, and declined the roof damage claim fairly, in line with the policy. Should Mrs J wish to pursue reimbursement of higher repair costs, she'd need to provide Lloyds with further evidence of costs for the internal damage, or evidence that the image of her roof upon which the surveyor relied was outdated. In the absence of that evidence, I see no reason to require Lloyds to do any more.

My final decision

For the reasons given above, my final decision is that I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr J and Mrs J to accept or reject my decision before 2 March 2022.

Debra Vaughan
Ombudsman